

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
RAUL CARIDAD,

Plaintiff,

-against-

Index #:

**VERIFIED
COMPLAINT**THE CITY OF NEW YORK and P.O. STEVEN SCHMITT,
Shield # 16800) and P.O. JERMAINE SCOTT, Shield #2459,Defendants.
-----X

Plaintiff, RAUL CARIDAD (hereinafter "CARIDAD"), by his attorneys, RUBERT & GROSS, P.C., complaining of defendants, THE CITY OF NEW YORK (hereinafter "CITY") and P.O. STEVEN SCHMITT, Shield # 16800 (hereinafter "SCHMITT"), and P.O. JERMAINE SCOTT, Shield #2459 (hereinafter "SCOTT"), alleges as follows:

1. At all times hereinafter mentioned, defendant, CITY, was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.
2. At all times hereinafter mentioned, defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
3. At all times hereinafter mentioned, defendant, SCHMITT, was an employee of defendant, CITY.
4. At all times hereinafter mentioned, defendant, SCOTT, was an employee of defendant, CITY.
5. At all times hereafter mentioned, defendant, SCHMITT, was acting within the scope of his employment.

6. At all times hereafter mentioned, defendant, SCOTT, was acting within the scope of his employment.
7. Defendant, SCHMITT, is being sued individually and in his official capacity.
8. Defendant, SCOTT, is being sued individually and in his official capacity.
9. At all times hereinafter mentioned, defendant, SCHMITT, was acting under color of law.
10. At all times hereinafter mentioned, defendant, SCOTT, was acting under color of law.
11. On October 7, 2015, within ninety (90) days of accrual of plaintiff's cause of action for false arrest, the plaintiff filed a Notice of Claim in the manner and mode required by law.
12. On December 8, 2015, within ninety (90) days of accrual of plaintiff's cause of action for malicious prosecution, the plaintiff filed a Notice of Claim in the manner and mode required by law.
13. On February 19, 2016, plaintiff was orally examined pursuant to General Municipal Law § 50-h.
14. More than 60 days have elapsed since the filing of plaintiff's Notices of Claim and adjustment or payment thereof has been neglected or refused.
15. That this action is brought within one (1) year and ninety (90) days from the accrual of all causes of action.
16. That Plaintiff has complied with all conditions precedent applicable to the instant action.

17. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

18. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "17" above as if fully set forth herein.
19. On August 9, 2015, at approximately 12:45 p.m., at or near plaintiff's place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York Plaintiff was wrongfully arrested by police officer employed by the City of New York.
20. On August 9, 2015, at approximately 12:45 p.m., at or near his place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York Plaintiff was wrongfully arrested by defendant, SCOTT.
21. On August 9, 2015, at approximately 12:45 p.m., at or near his place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York Plaintiff was wrongfully arrested by defendant, SCHMITT.
22. Defendant, CITY, through its police officers, agents, servants and/or employees, did wrongfully detain and imprison plaintiff without probable cause, without an arrest warrant and in bad faith.
23. Defendant, SCHMITT, did wrongfully detain and imprison plaintiff without probable cause, without an arrest warrant and in bad faith.
24. Defendant, SCOTT, did wrongfully detain and imprison plaintiff without probable cause, without an arrest warrant and in bad faith.

25. In commencing and continuing said wrongful detention and imprisonment, defendants caused plaintiff to be wrongfully detained in violation of the laws of the State of New York and his constitutional rights.
26. At the time of the unlawful imprisonment, plaintiff had not committed any illegal act.
27. At the time of the unlawful imprisonment, plaintiff had not committed or attempted to commit any crime.
28. At the time of the unlawful imprisonment, plaintiff had not given defendants probable cause to believe that he had committed any illegal acts.
29. At the time of plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.
30. Defendant, CITY, through its agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff.
31. Defendant, SCHMITT, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff.
32. Defendant, SCOTT, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff.
33. Defendants willfully and wrongfully accused plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.
34. The aforesaid arrest was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest.

35. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
36. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "36" above as if fully set forth herein.
38. That on August 9, 2015, at approximately 12:45 p.m., at or near plaintiff's place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York Plaintiff was assaulted and battered by members of the New York City Police Department.
39. That on August 9, 2015, at approximately 12:45 p.m., at or near plaintiff's place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York Plaintiff was assaulted and battered defendant, SCOTT.
40. That on August 9, 2015, at approximately 12:45 p.m., at or near plaintiff's place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York Plaintiff was assaulted and battered defendant, SCHMITT.

41. That at all times mentioned herein, defendant, SCHMITT was acting under the color of authority, and in furtherance of his employer, the NYPD's, interest.
42. That at all times mentioned herein, defendant, SCOTT was acting under the color of authority, and in furtherance of his employer, the NYPD's, interest.
43. That the aforementioned conduct of Defendant, City's employees was willful and wanton and the defendant acted with reckless disregard for the consequences of his actions.
44. That the aforementioned conduct of Defendant, SCHMITT, was willful and wanton and the defendant acted with reckless disregard for the consequences of his actions.
45. That the aforementioned conduct of Defendant, SCOTT, was willful and wanton and the defendant acted with reckless disregard for the consequences of his actions.
46. As a result of the foregoing, plaintiff was caused to sustain personal injuries.
47. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

48. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "47" above as if fully set forth herein.
49. Subsequent to plaintiff's arrest, defendant, CITY, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against plaintiff without probable cause and in bad faith in the Criminal Court of the City of New York, County of New York, by filing an accusatory instrument, without probable cause and in bad faith.

50. Subsequent to plaintiff's arrest, defendant, SCHMITT, did maliciously cause a criminal prosecution to be commenced against plaintiff without probable cause and in bad faith in the Criminal Court of the City of New York, County of New York, by filing an accusatory instrument, without probable cause and in bad faith.
51. Subsequent to plaintiff's arrest, defendant, SCOTT, did maliciously cause a criminal prosecution to be commenced against plaintiff without probable cause and in bad faith in the Criminal Court of the City of New York, County of New York, by filing an accusatory instrument, without probable cause and in bad faith.
52. That in commencing and continuing said malicious prosecution, defendant, CITY, its agents, servants and/or employees, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
53. That in commencing and continuing said malicious prosecution, defendant, SCHMITT, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
54. That in commencing and continuing said malicious prosecution, defendant, SCOTT, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
55. Plaintiff had not committed or attempted to commit any illegal act(s).
56. Plaintiff had not given defendant, CITY, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts of which he was accused.
57. Plaintiff had not given defendant, SCHMITT probable cause to believe that he had committed the illegal acts of which he was accused.

58. Plaintiff had not given defendant, SCOTT probable cause to believe that he had committed the illegal acts of which he was accused.
59. Defendant, CITY, its agents, servants and/or employees, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.
60. Defendant, SCHMITT, knew or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.
61. Defendant, SCOTT, knew or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.
62. Defendant, CITY, its agents, servants and/or employees, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
63. Defendant, SCHMITT, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
64. Defendant, SCOTT, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York
65. All criminal charges against plaintiff were dismissed on September 25, 2015.
66. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer substantial damages.
67. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing

within his community.

68. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

69. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "68 " above as if fully set forth herein.

70. That defendant, SCHMITT's conduct towards Plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

71. That defendant, SCOTT's conduct towards Plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

72. That defendant, SCHMITT, acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said Plaintiff.

73. That defendant, SCOTT, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said Plaintiff.

74. Defendant, SCHMITT, acted with utter disregard of the consequences of his actions.

75. Defendant, SCOTT, acted with utter disregard of the consequences of his actions.

76. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish,

anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

77. By reason of the foregoing, Plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

78. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "77" above as if fully set forth herein.

79. Defendant, CITY, through its agents, servants and/or employees, including, negligently performed its police duties and failed to use that degree of care as reasonably prudent police officers would have under similar circumstances.

80. Defendant, SCHMITT, negligently performed HIS police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

81. As a result of Defendants' negligence, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

82. By reason of the foregoing, Plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

83. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "82" above as if fully set forth herein.

84. That the actions of defendant, CITY, heretofore described constitute negligence in that defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including but not limited to defendants, SCHMITT and SCOTT.
85. That the actions of defendant, CITY, heretofore described constitute negligence in that defendant, CITY, negligently supervised or failed to supervise its agents, servants and/or employees, including but not limited to Defendants, SCHMITT and SCOTT.
86. The actions of defendant, CITY, heretofore described constitute negligence in that defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, including but not limited to Defendants, SCHMITT and SCOTT.
87. Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, including but not limited to Defendants, SCHMITT and SCOTT, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position.
88. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including but not limited to Defendants, SCHMITT and SCOTT, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold the position in that he refused or failed to perform within the statutory and constitutional limits of his authority and misused and abused his position.
89. As a result of the negligence of defendant, CITY, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

90. By reason of the foregoing, Plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

91. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "90" above as if fully set forth herein.

92. On August 9, 2015 at approximately 12:45p.m., at or near Plaintiff's place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York, defendant, SCHMITT, arrested Plaintiff without a warrant and without probable cause.

93. On August 9, 2015 at approximately 12: 45p.m., at or near Plaintiff's place of employment located at 14-21 College Point, Queens, New York in the County of Queens, City and State of New York, defendant, SCOTT, arrested Plaintiff without a warrant and without probable cause.

94. That the actions taken by defendant, SCHMITT, were undertaken under color of law and would not have existed but for said defendant's using his official power.

95. That the actions taken by defendant, SCOTT, were undertaken under color of law and would not have existed but for said defendant's using his official power.

96. That defendant, SCHMITT, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

97. That defendant, SCOTT, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
98. That the conduct and actions of defendant, SCHMITT, acting under color of State law, in falsely arresting plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four, Eight and Fourteenth Amendment, and the Constitution of the State of New York.
99. That the conduct and actions of defendant, SCOTT, acting under color of State law, in falsely arresting plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four, Eight and Fourteenth Amendment, and the Constitution of the State of New York.
100. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of

freedom and damage to his reputation and standing within his community.

101. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

102. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "101" above as if fully set forth herein.

103. That Plaintiff was assaulted and battered, without provocation or justification by defendant, SCHMITT, in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Fourth and Fourteenth Amendment and the Constitution of the State of New York.

104. That Plaintiff was assaulted and battered and subjected to excessive force, without provocation or justification by defendant, SCOTT, in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Fourth and Fourteenth Amendment and the Constitution of the State of New York.

105. As a result of said civil rights violations, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

106. By reason of the foregoing, Plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION

107. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "106" above as if fully set forth herein.

108. That defendant, SCHMITT, did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New York, County of Queens, by filing an accusatory instrument, without probable cause and in bad faith.

109. That defendant, SCOTT, did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New York, County of Queens, by filing an accusatory instrument, without probable cause and in bad faith.

110. In commencing and continuing said malicious prosecution, defendant, SCHMITT, caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

111. In commencing and continuing said malicious prosecution, defendant, SCOTT, caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

112. That Plaintiff had not committed or attempted to commit any illegal act(s).

113. That in commencing and continuing a baseless and malicious prosecution against Plaintiff, defendant, SCHMITT, violated Plaintiff's civil rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four, Eight and Fourteen and the Constitution of the State of New York.

114. That in commencing and continuing a baseless and malicious prosecution against

Plaintiff, defendant, SCOTT, violated Plaintiff's civil rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four, Eight and Fourteen and the Constitution of the State of New York.

115. That defendant, SCHMITT, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

116. That defendant, SCOTT, deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

117. The conduct and actions of defendant, SCHMITT, acting in concert and under color of State law, in assaulting, battering, detaining and imprisoning and maliciously prosecuting Plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

118. The conduct and actions of defendant, SCOTT, acting in concert and under color of State law, in assaulting, battering, detaining and imprisoning and maliciously prosecuting plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without

lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

119. The actions taken by defendant, SCHMITT, were undertaken under color of law and would not have existed but for said defendant using his official power.

120. The actions taken by defendant, SCOTT, were undertaken under color of law and would not have existed but for said defendant using his official power.

121. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

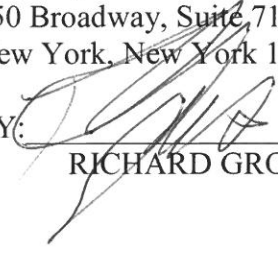
122. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

WHEREFORE, Plaintiff, RAUL CARIDAD, respectfully demands judgment against defendants, THE CITY OF NEW YORK and P.O. STEVEN SCHMITT, Shield No. 16800 and P.O. JERMAINE SCOTT, Shield No. 2459, requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
July 28, 2016

Yours, etc.

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038

BY: 

RICHARD GROSS

VERIFICATION

RICHARD GROSS, an attorney admitted to practice in the Courts of New York, states, under penalties of perjury:

I am a member of the law firm of RUBERT & GROSS, P.C., attorneys of record for plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof, the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

The reason this verification is being made by me and not by the plaintiff is because the plaintiff does not reside in the county within which we maintain our office.

The grounds of my belief as to all matters not stated upon my own information are as follows: conversations with plaintiff and the documents contained within my file.

Dated: New York, New York
July 28, 2016



RICHARD GROSS